

104	2025-01468006 Jetset Group Inc. vs. Firm Foundation Aviation, LLC	Motion for Attorney Fees Plaintiff Jetset Group, Inc.’s motion for attorney fees is denied. Plaintiff submitted its request for attorney fees with its request for a default judgment. The Court already ruled on Plaintiff’s request, awarding Plaintiff a total of \$51,539.13, comprised of damages and costs. The Court did not award Plaintiff its attorney fees. (ROA 45.) Plaintiff does not move for the Court to reconsider its decision pursuant to Code Civ. Proc., § 1008. Therefore, as there are no grounds to now award Plaintiff its attorney fees, the motion is denied.
106	2025-01469578 Ghent vs. General Motors LLC	Motion for Leave to File Amended Complaint Plaintiff Heather Ghent’s Motion for leave to file a first amended complaint against Defendant General Motors LLC is granted. Plaintiff is ordered to file and serve the First Amended Complaint within 10 days. Plaintiff is also ordered to give notice.
107	2022-01291454 T. vs. Mcfarland	Motion to Strike or Tax Costs Plaintiff’s motion to tax costs claimed by Defendant Cynthia Macfarland is granted in part and denied in part. The right to recover costs of suit is determined entirely by statute. (Code Civ. Proc., § 1032 et seq.) Unless otherwise expressly prohibited by statute, a prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5, subdivision (a) specifies cost items that are allowable, including filing and motion fees, deposition costs, and court reporter fees. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c).) If the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761,774-776; <i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266 [mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing]; see <i>Wagner Farms, Inc. v. Modesto Irrigation Dist.</i> (2006) 145 Cal.App.4th 765, 777-778 [prevailing defendant properly awarded its photocopying costs which were supported by invoice from copy company, when plaintiffs failed to present any evidence showing that copying could have been done for less]. On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (<i>Ladas v. California State Auto. Assn., supra</i>, 19 Cal.App.4th at pp. 774-776.) <u>Expert Witness Fees</u>

Defendant claims \$111,692.86 in expert witness fees.

Defendant previously served a Code of Civil Procedure Section 998 offer for \$100,000 on December 22, 2023, which was not accepted.

After trial in December 2025, the jury found in favor of Defendant.

Code Civ. Proc., § 998(c)(1) states (emphasis added):

If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of the offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant.

Contrary to Plaintiff's argument, the Court finds that Defendant's 998 offer was valid. Plaintiff contends it required Plaintiff's release of all claims, which pursuant to *Ignacio v. Caracciolo* (2016) 2 Cal.App.5th 81, 86–87 is not permitted, but this is not accurate. The relevant language of the release is limited to claims arising "because of the accident..." (Barnett Decl., Ex. A.) Furthermore, the offer stated that it is "subject to defendant being provided with a Release of All Claims related to the pending action." (Barnett Decl., Ex. A [emphasis added].)

The Court finds based on the evidence that Defendant's expert fees were properly incurred post-offer, and that such were reasonable and necessary to the litigation. In addition, Defendant's offer of \$100,000 was a reasonable and good faith offer in light of Plaintiff's responses to written discovery noting minimal medical damages and the ultimate finding of the jury in favor of Defendant. Therefore, the Court awards Defendant her requested expert witness fees.

Trial technology, Court Runner and "Other" Costs

Defendant claims \$13,729.94 in other costs, including trial technology services, court runner fees, and medical record printing.

The Court agrees with Plaintiff here and does not find that any of these costs were reasonably necessary to the litigation. None are specifically identified as allowable costs under Code Civ. Proc., § 1033.5(a). Furthermore, Code Civ. Proc., § 1033.5(c)(2) states that "[a]llowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Emphasis added.)

Accordingly, the Court disallows \$13,729.94 of Defendant's costs.

Other Cost Items

Plaintiff additionally challenges Defendant's claimed deposition costs, exhibit, copying and court reporter costs, and filing, service and motion fees.

		"[T]he burden is on the party seeking to tax costs to show they were not reasonable or necessary." (612 South LLC v. Laconic Limited Partnership (2010) 184 Cal.App.4th 1270, 1285 [citing <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131].) Plaintiff fails to meet his burden as to these costs. He does not point to any specific cost items within the documents that Defendant submitted that are improperly claimed, or otherwise demonstrate that such were not reasonable or necessary to the litigation. Based on the foregoing, the Court taxes a total of \$13,729.94 in costs and awards Defendant \$239,303.34. Defendant is ordered to give notice of the ruling.
109	2026-01545042 Jeff Lewis Law, APC vs. The Moad Group, Inc.	Application for Right to Attach Order/Writ of Attachment Plaintiff Jeff Lewis Law, APC's application for a writ of attachment against Defendant Ivan Moad in the amount of \$173,400.00 is denied. Plaintiff seeks to attach "all nonexempt attachable property of defendant Ivan Moad subject to attachment under Code of Civil Procedure section 487.010." Code Civ. Proc., § 484.020 requires that the application include: (e) A description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment....Where the defendant is a natural person, the description of the property shall be reasonably adequate to permit the defendant to identify the specific property sought to be attached. Plaintiff's description of the property is incredibly broad, contrary to § 484.020. (See <i>Bank of America v. Salinas Nissan, Inc.</i> (1989) 207 Cal.App.3d 260, 267–268.) Therefore, because Plaintiff failed to include an adequate description of the property sought to be attached pursuant to Code Civ. Proc., § 484.020, the application is denied. Defendant Ivan Moad shall give notice.
110	2025-01492685 Molina vs. Kia America, Inc	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint Defendant Kia America, Inc.'s demurrer to the fifth cause of action for fraudulent inducement in Plaintiffs Melinda and Michael Molina's first amended complaint ("FAC") is sustained without leave to amend. The motion to strike is granted without leave to amend as to the prayer for punitive damages in the FAC; the motion is otherwise moot. Facts Defendant Kia demurs to the fraudulent inducement claim contained within Plaintiffs' first amended complaint. [ROA #61.] Defendant expressly seeks to have the demurrer sustained without leave to amend, arguing that Plaintiffs have shown they cannot cure the defects in their allegations. [Demurrer MPA at 7.] Plaintiffs have filed a statement that they do not oppose the demurrer. [ROA #69.]